



File No.: EXP202307616

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On October 5, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against BEGIN RESTAURANTES, S.L. (hereinafter referred to as the claimed party). After notifying the initiation agreement and analyzing the allegations presented, on October 20, 2023, the proposal for resolution was issued, which is transcribed below:

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File No.: EXP202307616 (PS/00405/2023)

### PROPOSAL FOR RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

### BACKGROUND

FIRST: On May 27, 2023, Mr. A.A.A. (hereinafter, the claiming party) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity BEGIN RESTAURANTES, S.L., with CIF: B40626392, responsible for the website, \*\*\*URL.1 (hereinafter, the claimed party), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons concerning the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and considering the following:

a.- The reasons on which the complaint was based were that:

1. The establishment has installed video surveillance without proper signage.
2. The establishment at the entrance has an A4 size sign with Times New Roman font size 14 referencing LO 15/1999 without being duly updated in accordance with Law 3/2018.
3. The establishment's website does not allow pressing the button to reject cookies; only the accept option works.
4. The personal data protection policy on the website is defective.

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b.- Along with the complaint, the following documentation was attached:

- Photograph of a sign where the following message can be read:

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VIDEO SURVEILLANCE AREA. "BEGIN RESTAURANT". Organic Law 15/1999 on Data Protection. You can exercise your rights before: Begin Restaurante S.L. Avenida de las Cortes Valencianas 50, bajo. 46015. Valencia.

- Photograph of the entrance to the "Begin" Restaurant where the aforementioned sign can be seen inside the establishment.

- Copy of the "Privacy Policy" of the website \*\*\*URL.1.

SECOND: On June 7, 2023, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the claimed party for analysis and to inform, within one month, about what was stated in the complaint.

THIRD: On July 13, 2023, the claimed party sent a response to this Agency in which it stated the following:

"In response to the request made to Begin Restaurantes SL, we respond that the company Begin

Restaurante had its registered office at Gobernador Viejo 31 but has long since changed its registered office to Avda. Cortes Valencianas 50, 46015. Valencia, and has never had nor has cameras at that address.

We also comment that the company owning that building, Gotac Inmuebles, does have an alarm contract at that address, but there is no closed-circuit television system, so we request that the request made to Begin Restaurantes SL be annulled.”

FOURTH: On August 27, 2023, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint presented, in accordance with Article 65 of the LPDGDD.

FIFTH: On September 20, 2023, this Agency accessed the website, \*\*\*URL.1, recording the following characteristics about its “Privacy Policy” and its “Cookie Policy”:

a).- Regarding the processing of personal data:

a.1.- It was verified that personal data can be obtained through the option <>, \*\*\*URL.2 located at the bottom of the main page, where personal data such as name, phone number, or email can be entered.

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To submit the reservation form, it is necessary to click on the option

\_ I consent to the processing of personal data.

You can also click on the option:

\_ I consent to receive commercial communications from the restaurant via e-mail and/or SMS for commercial purposes.

There is a banner on the form page with basic information about the protection of personal data: responsible party; purpose; legitimacy; consent of the interested party; recipients; and rights regarding the processing of personal data.

a.2.- Personal data can also be entered when registering on the website, through the link available at the bottom of the main page <>, \*\*\*URL.3, where the user can enter their email address and curriculum vitae.

To submit the reservation form, it is only necessary to click on the option <>.

b).- Regarding the “Privacy Policy”:

If you access the “Privacy Policy” through the link available at the bottom of the main page <>, the website redirects the user to a new page, \*\*\*URL.4 where the user is provided with information about: the data of the responsible party of the website; the purpose of processing personal data; the retention period of the data; the legitimacy and the data collected; the consent to process the data; the categories of data; the security measures; the possible transfer of data and information about the user's rights regarding data protection.

c).- Regarding the Cookie Policy:

1.- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that non-technical or necessary cookies are used, with the following characteristics:

Performance Cookies

(2): These cookies allow us to quantify the number of visits and sources of traffic to evaluate the performance of the site. They help to know which pages are the most or least visited and how visitors navigate the website.

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cookies

Domain

Description

\_ga

\*\*\*URL.1

This cookie name is associated with Google Universal Analytics, which is a major update of the most widely used Google analytics service. This cookie is used to distinguish unique users by assigning a randomly generated number as a client identifier. It is included in each page request on a site and is used to calculate visitor, session, and campaign data for site analytics reports.

\_ga\_

XTEGFBD82P

\*\*\*URL.1

Google Analytics uses this cookie to maintain the session state.

2.- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears at the bottom of the main page with the following message:

YOU ARE VERY COOKIE:

The only cookies we like are the ones you eat. But we have to do this to make your experience the best it can be.

<> <>

If you wish to reject non-technical or necessary cookies by clicking on the <> option, it is verified that the website does not respond; it only responds when you click on the <> option, where it is verified that the website continues to use the cookies detected at the beginning.

3.- Regarding the information provided in the "Cookie Policy":

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If the "Cookie Policy" is accessed through the link at the bottom of the main page, the website redirects the user to a new page \*\*\*URL.5 where information is provided about: what cookies are; the purpose of the information collected through cookies; what types of cookies exist and which cookies are used by the website, and how to manage cookies through the mechanisms available in the browser installed on the terminal equipment.

SIXTH: On 05/10/23, the Directorate of the Spanish Agency for Data Protection initiated sanctioning procedure PS/0405/2023, which was notified to the respondent on 06/10/23, upon finding reasonable indications of a violation of the provisions established in Article 22.2 of the LSSI, regarding the deficiencies detected in its "Cookie Policy" (the use of third-party cookies that are not technical or necessary; the impossibility of rejecting third-party cookies and the lack of information in the first-layer banner or main page), with an initial sanction of 2,000 euros.

Regarding the use of video surveillance without proper signage, in this case, as there was no evidence that could demonstrate the use of video surveillance equipment in the establishment, it was not possible to consider the claim made by the complainant indicating that the establishment uses video surveillance without proper signage, thus the reference to the use of LO 15/1999 for this purpose lacks any foundation.

And regarding the deficiencies indicated in the complaint regarding the "Privacy Policy," based on the evidence available at that time, it was considered that the management of personal data carried out by the website \*\*\*URL.1 does not contradict the provisions of the GDPR regarding the processing of personal data and regarding the information that must be provided to the data subject when their personal data is obtained.

SEVENTH: On 16/10/23, this Agency received a written statement regarding the initiation of the file, in which the following is indicated:

"Currently, the website \*\*\*URL.1 displays to the user at the beginning of navigation, an informational window that, in a basic manner, alerts about the use of cookies and informs about their purpose and that they are first-party and third-party cookies. In the same way, it informs how the user can allow the installation of cookies, customize their installation, or how to keep them uninstalled and continue browsing the website without displaying this informational window. Additionally, the user is allowed to obtain additional information with a single click, through the expanded version called "Cookie Policy" <https://beginrestaurante.com/legal/politica-cookies> (see image):

By clicking the "REJECT COOKIES" button, only technical cookies are retained, as shown in the following image:

BEGIN RESTAURANTES S.L. considers, under the best opinion of the AEPD, that the necessary and required measures have been adopted by the Data Controller to comply with the provisions of Law 34/2002, of July 11, on information society services and electronic commerce (LSSI), Regulation 2016/679, regarding the protection of natural persons concerning the processing of personal data and the free movement of such data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

In addition, the recommendations contained in the Guide on the Use of Cookies, recently updated in July 2023, were taken into consideration to adopt these measures to improve the browsing experience on our website (<https://beginrestaurante.com/>).

WITH ALL RESPECT, based on the arguments presented here, we request this Agency to resolve this procedure by archiving the proceedings, based on Article 64 of the LOPDGDD, as a consequence of having duly complied with the provisions in the applicable regulatory framework regarding the matter.

EIGHTH: On 18/10/23, this Agency accessed the website \*\*\*URL.1, recording the following characteristics regarding its "Cookie Policy":

1.- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that NO cookies that are not technical or necessary are used.

2.- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears at the bottom of the main page with the following message:

**BASIC INFORMATION ABOUT COOKIES**

We use our own and third-party cookies that provide us with statistical data and user browsing habits; this helps us improve our content and services, including showing advertising related to user preferences. You can activate these cookies by clicking the "Accept cookies" button. If you prefer to keep these cookies disabled, click the "Reject cookies" button. You can also activate and deactivate the ones you prefer by clicking the "Customize cookies" button. More information in our Cookie Policy

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a.- If you wish to reject cookies that are not technical or necessary, by clicking on the option <>, it is confirmed that the website continues not to use cookies that are not technical or necessary.

b.- If you wish to accept cookies that are not technical or necessary, by clicking on the option <>, it is confirmed that the website begins to use the following cookies: `_ga_XTEGFBD82P`; `gatsby-gdpr-hotjar`; `gatsby-gdpr-linked-in`; `cookiesAccepted`; `gatsby-gdpr-facebook-pixel`;

gatsby-gdpr-tiktok-pixel; gatsby-gdpr-google-tagmanager; \_ga; gatsby-gdpr-google-analytics; and cookiesStored whose domain is .beginrestaurant.com.

c.- If you wish to access the cookie control panel, by clicking on the option <>, the website displays a banner with the following information:

#### BASIC INFORMATION ABOUT COOKIES

We use our own and third-party cookies that provide us with statistical data and browsing habits of users; this helps us improve our content and services, including showing advertising related to users' preferences. You can activate these cookies by pressing the "Accept cookies" button. If you prefer to keep these cookies deactivated, press the "Reject cookies" button. You can also activate and deactivate the ones you prefer by pressing the "Customize cookies" button. More information in our Cookie Policy.

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3rd.- Regarding the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link at the bottom of the main page, the website redirects the user to a new page \*\*\*URL.5 where information is provided about: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies once consent has been given through the mechanisms available in the browser installed on the terminal equipment.

From the actions taken in this procedure and the documentation in the file, the following has been established:

#### PROVEN FACTS

First: The complaint was based on the fact that the website \*\*\*URL.1 did not comply with the current legal regulations regarding cookie policy; therefore, on 20/09/23, it was noted by this Agency that, upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, cookies that were not technical or necessary were being used without the prior consent of the user.

Furthermore, the cookie information banner present on the first layer of the website, containing the generic message: "The only cookies we like are the ones you eat. But we have to do this to make your experience the best it can be," lacked the necessary identification regarding the purposes for which the cookies would be used and whether they were first-party or third-party cookies.

Finally, it was confirmed that it was impossible to reject cookies that were not technical or necessary since the button present in the cookie information banner on the main page did not respond. There was also no possibility to manage cookies granularly through a control panel, should the user wish to do so, as it did not exist.

Second: After receiving the allegations regarding the initiation of the file, where essentially the respondent stated that they had corrected the deficiencies detected in the Cookie Policy, on 18/10/23, this Agency accessed the website \*\*\*URL.1 again, noting the following characteristics regarding its "Cookie Policy":

Regarding the use of cookies before the user gives their consent, it was confirmed that, upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the page, the website NO longer used cookies that were not technical or necessary. It was also confirmed that, if the user wished for the website not to use cookies that were not technical or necessary by using the option <>, the website continued not to use such cookies.

Regarding the cookie information banner on the first layer, it was confirmed that it informed about the purposes for which the cookies were used, as well as how to manage them directly or through the control panel.

Regarding the information provided in the "Cookie Policy," it was confirmed that, upon accessing the "Cookie Policy" through the link at the bottom of the main page, the website redirects the user to a new page where information is provided about: what cookies are; what the information collected through

cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies once consent has been given through the mechanisms available in the browser installed on the terminal equipment.

## LEGAL GROUNDS

I.-

Competence:

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Regarding the "Cookies Policy," the competent authority to initiate and resolve this procedure is the Director of the Spanish Agency for Data Protection, in accordance with the provisions established in Article 43.1, second paragraph, of the LSSI Law. The fourth additional provision of the LOPDGDD establishes, regarding the "Procedure related to the competencies attributed to the Spanish Agency for Data Protection by other laws," that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.-

Regarding the Cookies Policy of the website

\*\*\*URL.1

The respondent states in its allegations regarding the initiation of the file that, currently, the website \*\*\*URL.1 displays to the user at the beginning of navigation an informative window that, in a basic manner, alerts about the use of cookies and informs about their purpose and that they are both first-party and third-party cookies.

It also states that cookies that are not technical or necessary are no longer used without the prior consent of the user and that the installation of these cookies can be customized or they can be kept uninstalled while continuing to navigate the website.

Therefore, it considers that the necessary and required measures have been adopted to comply with the provisions of the LSSI.

However, the deficiencies detected in the cookies policy of the website \*\*\*URL.1, from the verification conducted by this Agency on 29/09/23 to the latest one dated 18/10/23 on the website in question, regarding the impossibility of rejecting non-technical or necessary third-party cookies and the lack of information present in the cookie banner on the main page, constitutes a violation of the provisions established in Article 22.2 of the LSSI during that time, as it states that:

"Service providers may use storage and data retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of data processing, in accordance with the provisions of Organic Law 15/1999 on the protection of personal data.

When technically possible and effective, the consent of the recipient to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent strictly necessary, for the provision of a service of the information society expressly requested by the recipient."

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This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using storage and data retrieval devices when the information has not been provided or the

consent of the service recipient has not been obtained in the terms required by Article 22.2.", and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. Therefore, in light of the above, the following is proposed:

#### PROPOSAL FOR RESOLUTION

FIRST: That the Director of the Spanish Agency for Data Protection proceed to sanction the entity BEGIN RESTAURANTES, S.L., with CIF: B40626392, responsible for the website \*\*\*URL.1 in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for violation of the provisions established in Article 22.2 of the LSSI, regarding the irregularities detected in its "Cookies Policy," with a fine of €2,000 (two thousand euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed fine, which will entail a 20% reduction of the amount (€400). With the application of this reduction, the fine would be set at €1,600 (one thousand six hundred euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the fine.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must make it effective by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the fine. Additionally, it must send the proof of payment to the General Subdirectorate of Inspection to proceed to close the file.

In virtue of this, you are notified of the above, and the procedure is made known so that within TEN WORKING DAYS you may allege whatever you consider in your defense and present the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

José Pablo Lozoya Martín.

#### THE INSTRUCTOR OF THE PROCEDURE

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#### ANNEX

Index of file EXP202307616

27/05/2023 Claim by A.A.A.

07/06/2023 Transfer of claim to BEGIN RESTAURANTES, S.L.

13/07/2023 Response to information request from BEGIN RESTAURANTES

27/08/2023 Communication to A.A.A.

20/09/2023 Diligence

06/10/2023 Agreement to initiate proceedings against BEGIN RESTAURANTES, S.L.

06/10/2023 Written communication to A.A.A.

16/10/2023 Allegations from BEGIN RESTAURANTES, S.L.

18/10/2023 Diligence 2

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SECOND: On November 16, 2023, the respondent has proceeded to pay the fine in the amount of 1600 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the resolution proposal.

#### LEGAL GROUNDS

I

#### Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society

Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Data Protection Agency must process in exercising the competencies attributed to it by other laws."

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Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202307616, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to BEGIN RESTAURANTES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Director of the Spanish Data Protection Agency

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